

Fund Deed Questions (15 questions)

Deed Currency & Validity

1. "What is the current deed date for this fund, and has it been updated to reflect all legislative changes since that date?"
2. "Is the current deed compliant with the SIS Act as amended — are there any provisions that appear outdated or inconsistent with current law?"
3. "When was the deed last restated or amended, and was a deed of amendment properly executed at that time?"
4. "Does the deed allow the fund to operate as a regulated superannuation fund under the current SIS Act definition?"

Pension Provisions

5. "Does the deed specifically allow the commencement of account-based pensions, and are the payment and commutation rules consistent with current law?"
6. "Does the deed permit reversionary pensions, and if so, who is eligible to receive a reversionary benefit under the deed's definition?"
7. "Does the deed allow the trustee to make a partial commutation of a pension back to accumulation phase?"
8. "Are the deed's pension provisions broad enough to permit the fund to claim ECPI under both the segregated and proportionate methods?"

Death Benefit & Nominations

9. "Does the deed support binding death benefit nominations (BDBNs), and are there any restrictions on who can be nominated as a beneficiary?"
10. "Does the deed allow non-lapsing binding nominations, or do nominations automatically lapse after 3 years under the deed's rules?"
11. "Is there a reversionary pension nomination in place for this member, and does the deed's definition of 'dependant' support that nomination?"
12. "If a member dies with no valid nomination, how does this deed direct the trustee to distribute the death benefit — is that consistent with the member's estate planning intent?"

Trustee & Control Provisions

13. "Does the deed allow a corporate trustee to act, and has the fund properly transitioned from individual to corporate trustee if that change was made?"
14. "Who has the power to appoint and remove trustees under this deed, and does that align with the member's control intentions?"
15. "Does the deed contain any provisions that could restrict a member's ability to withdraw, commute, or roll over their benefit?"

Contribution & Membership Rules

16. "Does the deed permit all contribution types being made to this fund — concessional, non-concessional, spouse, downsizer, and small business CGT contributions?"
17. "Are there any age or membership restrictions in the deed that could prevent a new member from joining or an existing member from continuing contributions?"
18. "Does the deed allow the fund to accept contributions from employers other than the member's principal employer?"

Red Flag / Risk Questions

19. "Are there any clauses in this deed that conflict with the fund's current pension, contribution, or investment strategy arrangements?"
20. "Has the deed been reviewed since any of the following: the member's marriage, divorce, death of a co-member, addition of a new member, or change in trustee structure?"
21. "Is there any risk that the current deed could be challenged — for example, was the amendment process properly followed each time the deed was updated?"
22. "Does the deed pre-date the introduction of account-based pensions in 2007, and if so, has it been adequately updated to reflect modern pension rules?"

Combining Deed with Other Questions

These are particularly powerful when the RAG assistant can cross-reference the deed against other documents:

23. "Does the binding death benefit nomination on file match what the deed actually permits — is it valid under the deed's rules?"
24. "The member wants to commence a transition-to-retirement income stream. Does the current deed explicitly allow TTRs, or is this relying on implied powers?"
25. "The pension commencement document refers to a deed dated [X]. Is that the deed currently in force, or has the deed been amended since then?"